

Leave to Amend

The court grants DIAZ fifteen (15) days' leave from the date notice of this order is served to file a second amended cross-complaint in accordance with the court's ruling.

FRANCISCO MAGAN RAMIREZ et al. v. ROGER COX CASE NO. CU24-09307

Motion to Appoint Successor Guardian Ad Litem

TENTATIVE RULING:

On December 5, 2024, Alejandra Jocelyn Magana Reynoso was appointed as guardian ad litem for minor Eliabeth Magana Camacho.

While a settlement in the underlying personal injury case was reached over a year ago, Plaintiff's counsel has lost contact with Ms. Camacho who has been unresponsive despite diligent efforts by counsel to reach her. The court finds good cause to remove Ms. Camacho as guardian ad litem and to appoint Francisco Magana Ramirez as successor guardian ad litem.

The court will process the lodged order forthwith. Plaintiff's counsel shall file the petition for minors compromise forthwith.

VANLEUVEN v. DGDG 18, LLC, ET AL. Case No. CU26-00433

Petition to Compel Arbitration

TENTATIVE RULING:

The unopposed petition to compel arbitration is GRANTED.

The action shall be stayed as to Defendants DGDG and CAPITOL ONE AUTO FINANCE until arbitration is completed. (Code Civ. Proc. § 1281.4.) Arbitration review is set for **May 27, 2027 at 8:30 in Department 8**. Defendants shall initiate arbitration in the next 15 calendar days.

Defendant DGDG established, and Plaintiff admitted in her complaint, that Plaintiff entered into a retail installment sales contract with Defendant DGDG to purchase a used vehicle. The retail agreement contains an arbitration clause invoking the Federal Arbitration Act ("FAA").

DGDG contends that Plaintiff's claims against Defendant are different than her claims related to a service contract or bad repairs against VICTORY and USWC. Given these differences, it does not appear necessary to stay the civil action in order to secure full relief for Plaintiff as inconsistent decisions do not appear to be at issue.